

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

(JUDICIAL DEPARTMENT)

Writ Petition No.10136 of 2012

Khalid Hussain Vs. Manzoor Hussain, etc.

JUDGMENT

Date of Hearing	15.05.2025
Petitioner by:	Mr. Muhammad Tariq Mehmood Bhalli, Advocate.
Respondents No.1 to 4 by:	Proceeded <i>ex parte</i> vide order dated 22.01.2025.
Respondents No.5 to 11	Proceeded <i>ex parte</i> vide order dated 29.05.2017.
Respondents No.12 to 14 by	Mr. Muhammad Nawaz Ch., Assistant Advocate General.

MUHMUHAMMAD RAZA QURESHI, J. The Constitutional jurisdiction of this Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, has been invoked by the petitioner questioning the legality and validity of order dated 29.03.2012 passed by the learned Member (Judicial-VII), Board of Revenue, Punjab, pursuant whereto ROR bearing No.1607/2011 filed by the petitioner and proforma respondents No.15 to 22 was dismissed.

2. The primary question impugning the concurrent findings of revenue hierarchy revolves around determination about parentage and relationship status of one Mst. Bashiran Bibi who happened to be predecessor-in-interest of the petitioner. The subject matter encapsulating the whole *lis* pertains to sanctioning of mutations bearing No.269 dated 18.03.2005, 270 dated 23.04.2002 and 379 dated 11.06.2008.

3. Learned counsel for the petitioner submits that parentage of Bashiran Bibi stood finalized through judgment and decree dated 10.04.2008 passed by the learned Trial Court which attained finality when legal heirs of respondent Muhammad Shafi withdrew their appeal on 16.06.2008 and consequently, it stood finally determined that Bashiran Bibi was daughter of Mehtab Din. Submits that

petitioner is cognizant of the legal position that scope of interference in concurrent findings of lower hierarchy in Constitutional jurisdiction is limited but in the instant case misreading and illegalities are floating on the surface of impugned findings contained in the impugned order, therefore, same merit to be set aside by this Court. According to learned counsel, the impugned order is not sustainable in the eyes of law and is liable to be set aside.

4. On the contrary, learned Assistant Advocate General while defending the position of the Province of the Punjab submits that whether subject matter mutation No.379 could have been sanctioned in presence of judgment and decree passed by the learned Trial Court is to be examined by this Court as the impugned order appears to have misjudged the factual as well as legal status and respective positions of the parties.

5. After hearing learned counsel for the parties, record has been perused, which reflects that the subject matter of the controversy revolves around land admeasuring 70-Kanals 08-Marlas which was temporarily allotted through Permit No.9665 dated 21.12.1954 in favour of nine family members mentioned in '*fard takseem*', who were Jammu & Kashmir refugees. The said family members were headed by Muhammad Shafi (predecessor-in-interest of respondents No.1 to 4) who under the policy applied for grant of proprietary rights and upon approval **mutation bearing No.19 dated 25.09.1978** was sanctioned. This mutation was sanctioned in the name of Muhammad Shafi and names of other family members were reflected in the mutation, wherein Bashiran Bibi was mentioned as his sister.

6. Since grant of proprietary rights was in violation of Government policy as rights were to be conferred in favour of all family members, therefore, mutation No.19 dated 25.09.1978 was challenged by Muhammad Boota (predecessor-in-interest of respondents No.5 to 11), Sughran Bibi (predecessor-in-interest of

respondents No.15 to 21) and Muhammad Asghar respondent No.22.

7. Through order dated 12.09.1991 the Assistant Commissioner/Collector, Tehsil Sialkot, set aside mutation No.19 directing Revenue Officer *Halqa* to register mutation in accordance with allotment of land. Muhammad Shafi and other affectees challenged the said order before the Additional Commissioner (Revenue), Gujranwala Division, Gujranwala, who through order dated 12.02.1994 set aside the order dated 12.09.1991 passed by the Collector and restored mutation No.19. Muhammad Boota, Sughran Bibi and other affectees questioned this order before the Senior Member, Board of Revenue, who through order dated 27.07.1998 allowed the appeal and directed the Revenue Officer *Halqa* to sanction mutation as per '*fard takseem*' and consequently order dated 12.02.1994 passed by the Additional Commissioner (Revenue), Gujranwala Division, Gujranwala was set aside. As a consequence of order dated 27.07.1998 passed by the SMBR, **mutation No.269 dated 18.03.2005** was sanctioned and names of all the owners were incorporated as per '*fard takseem*' and name of Bashiran Bibi was mentioned as daughter of Mehtab Din. **The first round of litigation** concluded here.

8. **The second round of litigation** started when legal heirs of Muhammad Shafi abandoned the elected remedy before revenue/settlement hierarchy and filed a suit, *inter alia*, for declaration and permanent injunction before the learned Civil Judge, Sialkot. The said suit was dismissed through judgment and decree dated 10.04.2008 and not only mutation No.269 dated 18.03.2005 attained finality but parentage of Bashiran Bibi as daughter of Mehtab Din also stood finalized. This judgment and decree was though questioned by legal heirs of Muhammad Shafi by filing an appeal before the learned Appellate Court, but it was dismissed when legal heirs of Muhammad Shafi withdrew the same on 16.06.2008. In the meantime, **mutation No.270 dated**

23.04.2002 stood sanctioned in favour of Bashiran Bibi and her share was consequently devolved in favour of her legal heirs.

9. Interestingly, while the appeal proceedings before the learned District Judge, Sialkot were underway, the legal heirs of Muhammad Shafi switched to **third round of litigation** and this time filed an application before the District Officer (Revenue), Sialkot on 29.04.2008 seeking rectification of mutations No.269 and 270. The ground for reconsideration of these mutations was the same as earlier adjudicated and concluded in revenue hierarchy in first round of litigation and before the court of plenary jurisdiction in second round of litigation i.e. to hold Bashiran Bibi as sister of Muhammad Shafi instead of mentioning her name as Bashiran Bibi daughter of Mehtab Din.

10. The third round of litigation actually became subject matter of instant petition and the core question for determination herein is whether the concurrent findings in third round of litigation are sustainable in the eyes of law. In this round of litigation upon submission of an application by Muhammad Shafi's heirs, an order was passed by the Collector, Sialkot directing that mutation be sanctioned in accordance with '*fard takseem*' as *per* decision of Senior Member, Board of Revenue and thereafter **mutation No.379 dated 11.06.2008** was sanctioned and again name of Bashiran Bibi was mentioned as sister of Muhammad Shafi.

11. The petitioner challenged this mutation before the Executive District Officer (Revenue), Sialkot and through order dated 10.02.2009 the matter was remanded to the District Officer (Revenue) for hearing the parties and correction of record accordingly. Upon remand of proceedings, matter was taken up by the District Officer (Revenue)/Collector, Sialkot, who through order dated 15.02.2011 directed that as per decision of Senior Member, Board of Revenue passed on 27.08.1998 the subject matter land be transferred and name of Bashiran Bibi be mentioned as sister of Muhammad Shafi and consequently mutation No.379 dated

11.06.2008 was lawfully sanctioned. It is noteworthy that this order categorically directed the parties to approach the court of plenary jurisdiction for seeking correction of status of Bashiran Bibi as daughter of Mehtab Din.

12. The petitioner again filed an appeal before the Additional Commissioner (Revenue), Gujranwala Division, Gujranwala, having camp at Sialkot, who through order dated 29.08.2011 directed the parties to approach the Member (Judicial-II), Board of Revenue/Settlement Commissioner & Rehabilitation. This order was challenged by the present petitioner along with other affectees before the Board of Revenue wherein the impugned order dated 29.03.2012 was passed, pursuant whereto the revision petition filed by the petitioner was dismissed.

13. The sequel of litigation ending into third round of litigation reflects that this round was actually a non starter, barred by law and hit by *res judicata*. The crux of whole controversy remained that the subject matter land was allotted to nine family members of Muhammad Shafi according to '*fard takseem*'. The names of two ladies, namely, Sardar Bibi and Bashiran Bibi were mentioned in the mutation No.19. Sardar Bibi was initially wife of Mehtab Din and out of their wedlock Bashiran Bibi was born and Sardar Bibi subsequently got married with Muhammad Shafi and name of Bashiran Bibi as sister of Muhammad Shafi was wrongly mentioned. Since Bashiran Bibi was family member of Muhammad Shafi whose name was mentioned in '*Rashin Card*', the only rectification required in the mutation was mentioning her name as Bashiran Bibi daughter of Mehtab Din.

14. All these facts stood established in first round of litigation as well as in the suit proceedings of Muhammad Shafi which was dismissed through judgment and decree dated 10.04.2008 and said judgment and decree attained finality. The status of Muhammad Shafi and his nine family members being refugees of Jammu & Kashmir is not disputed. As per policy,

initially the proprietary rights were granted only to the head of the family, however, subsequently through Policy dated 21.11.1978 issued by the office of Member, Board of Revenue (Settlement & Rehabilitation Wing), Board of Revenue, Punjab, it was decided that proprietary rights of temporarily allotted land be granted to all the members of the family indicated in the allotment chit and consequently mutation No.19 was sanctioned initially in the name of Muhammad Shafi being head of his family. However, subsequent to letter dated 21.11.1978 it incorporated names of family members of Muhammad Shafi.

15. Sughran Bibi and Muhammad Asghar being children of Bashiran Bibi challenged mutation No.19 along with one Muhammad Boota wherein respondent Muhammad Shafi through his legal heirs gave a statement that Bashiran Bibi was daughter of Mehtab Din and if '*Intiqal Taqseem*' was amended to this extent they had no objection. Probably to retrace their steps and resile from the statement this order of Collector was questioned by legal heirs of Muhammad Shafi before the Additional Commissioner (Revenue), Gujranwala and matter ultimately concluded before the Senior Member, Board of Revenue through order dated 27.08.1998 who set aside mutation No.19 and declared that it was to be sanctioned according to '*fard takseem*' only.

16. As a consequence of this order, mutation No.269 was passed and name of Bashiran Bibi was mentioned as daughter of Mehtab Din. The matter should have concluded here as none of the parties challenged this order and same attained finality.

17. The legal heirs of Muhammad Shafi decided to switch over the election of remedy and went before the court of plenary jurisdiction to seek a declaration that Bashiran Bibi daughter of Mehtab Din had nothing to do with Muhammad Shafi and the one Bashiran Bibi mentioned in mutation was actually his sister. This contention was discarded by the learned Trial Court through its judgment and decree dated 10.04.2008 who while giving findings

on issues No.8 and 9 in paragraph 9 declared that version of Sughran Bibi and Muhammad Asghar stood proved that Bashiran Bibi was daughter of Mehtab Din whose name was mentioned in '*fard takseem*'. Consequently, the suit filed by the legal heirs of Muhammad Shafi stood dismissed through judgment and decree dated 10.04.2008 and this judgment and decree attained finality as appeal thereagainst was never pressed by the legal heirs.

18. These two rounds (one in settlement/revenue hierarchy and second before the Civil Court) closed the controversy for all intents and purposes, therefore, opening of the same by the legal heirs of Muhammad Shafi through application before the District Officer (Revenue) seeking rectification in mutations No.269 and 270 was not only unwarranted but also not maintainable. Therefore, there was no occasion for the department to revise the mutations through mutation No.379 wherein name of Bashiran Bibi was replaced as sister of Muhammad Shafi. The findings and declaration with respect to Bashiran Bibi already stood final through order dated 27.07.1998 passed by the Senior Member, Board of Revenue, and judgment and decree dated 10.04.2008 passed by the learned Civil Court. Thereafter, there was no occasion for sanctioning of mutation No.379.

19. It is noteworthy that even the order dated 15.02.2011 passed by the District Officer (Revenue)/Collector, Sialkot while referring the present petitioner being legal heir of Bashiran Bibi to resolve the controversy through court of plenary jurisdiction misread the evidence and material on record without adverting to the fact that the learned Civil Court, Sialkot had already given its verdict about parentage and relationship status of Bashiran Bibi. The impugned order illegally and unlawfully rubber-stamped the orders passed in the lower hierarchy. This order was passed without application of judicious mind presuming that mutation No.379 was sanctioned pursuant to direction of Senior Member, Board of Revenue contained in order dated 27.07.1998. The said order actually set aside the mutation No.19 dated 25.09.1978 and earlier

orders and simply directed the Settlement/Revenue Department to incorporate the names according to '*fard takseem*' and as a consequence thereof, mutation No.269 was sanctioned. Subsequent thereto, none of the parties questioned this mutation till the time when legal heirs of Muhammad Shafi challenged the same by filing suit before the court of plenary jurisdiction and said suit was dismissed, therefore, there was no occasion to question mutations bearing No.269 and 270.

20. The edifice of fallacy contained in the impugned order emanates from an understanding that order dated 27.07.1998 passed by the Senior Member, Board of Revenue, culminated into mutation No.379. This finding itself is inherently flawed as the mutation sanctioned as a result of order passed by the Senior Member, Board of Revenue was mutation No.269 instead of 379. It appears that the impugned order not only misread and non-read the evidence and material on record but all proceedings which led to impugned order dated 29.03.2012 were actually void *ab initio*, without lawful authority and nullity in the eyes of law as the determinations and adjudications with respect to the status of relationship and parentage of Bashiran Bibi had already attained finality through order dated 27.07.1998 passed by the learned Senior Member, Board of Revenue and judgment and decree dated 10.04.2008 passed by the learned Civil Court.

21. While touching the concurrent findings of facts by the revenue hierarchy, this Court is cognizant of limitations of interfering in such findings in exercise of its Constitutional jurisdiction. It must be borne in mind that concurrent findings of facts by *fora* functioning in revenue hierarchy do not become sacrosanct only because it is concurrent. Neither a Court nor a Tribunal has jurisdiction to make an error of law. The forum which is invested with the jurisdiction to decide a particular matter, has no jurisdiction to decide it rightly or wrongly because the condition for the grant of jurisdiction is that it should decide the matter in accordance with the law. Therefore, any finding of facts only

becomes sacrosanct if it is based on proper appraisal of evidence and following the mandate of law. When a quasi-judicial or judicial forum dealing with the matter goes wrong in law, it goes out of jurisdiction conferred upon it because the said forum has only jurisdiction to decide the matter lawfully but has no jurisdiction to decide wrongly. Therefore, in the instant case, the concurrent findings of revenue hierarchy are erroneous and not based on proper appraisal of evidence and due application of law and this Court is well within its jurisdiction to interfere therewith and quash the findings of forums below in exercise of its Constitutional jurisdiction. Reliance in this respect is placed upon the judgments reported as “Utility Stores Corporation of Pakistan Limited vs. Punjab Labour Appellate Tribunal and others” (PLD 1987 SC 447) and “Muhammad Nawaz alias Nawaza and others vs. Member Judicial, Board of Revenue and others” (2014 SCMR 914).

22. The proceedings before revenue hierarchy in third round of litigation were not only tainted but also suffered from *mala fide* in law. Consequently, instant petition is **allowed** and all orders merging into impugned order dated 29.03.2012 as well as mutation No.379 are **set aside**. No order as to costs.

(MUHAMMAD RAZA QURESHI)
JUDGE

Approved for reporting.

JUDGE